

23NWCV01388 23NWCV01388

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Bryan Garcia v. Israel Mejia, et al., 23NWCV01388

This personal injury action was filed on May 4, 2023. Trial is scheduled to begin on August 3, 2026. On July 13, 2026, the Court granted Plaintiff Bryan Garcia's (Plaintiff) Motion in Limine No. 1 and precluded Defendants Art Gautreau, Inc. dba AGI General Contracting, Israel Mejia (Defendants) from calling certain experts at trial. Defendants now apply ex parte for an order (1) Relieving Defendants from the Court's July 13, 2026 Order granting Plaintiff's Motion in Limine No. 1 and precluding Defendants from calling their designated expert witnesses at trial, and reinstating Defendants' right to call those experts; and (2) Continuing the trial date and allowing for limited expert discovery to occur for the purpose of permitting Plaintiff's to depose Defendants' experts.

Defendants move for relief under Code of Civil Procedure section 473, subdivision (b) on the grounds that: "Defendants mistakenly relied upon their expert designation which had occurred on May 7, 2025, and failed to note the abnormal language that then-counsel had included in the May 29, 2025, demand for expert exchange rendering the prior designation 'moot.' Defendants in good faith believed that they had previously and properly designated their experts and therefore did not designate a second time to correspond with the November 2025 trial date." (Ex Parte, 2:13-18.) Defendants argue good cause exists because precluding all of Defendants' experts is in effect a terminating sanction. Defendants state that they have confirmed that the subject experts will all be available within the next three weeks.

In opposition, Plaintiff argues that relief under Code of Civil Procedure section 473 is unavailable as Code of Civil Procedure section 2034.710 prescribes the means for relief. Further, Plaintiff argues that even if Code of Civil Procedure section 473 applied, Defendants do not establish an excusable mistake. Plaintiff notes that Defendants made arguments in support of its position and only when those failed, argued that it was a mistake.

Defendants' ex parte application for relief from the July 13, 2026 Order and continuing trial is DENIED for the reasons stated in Plaintiff's opposition. Defendants did not move for relief under Code of Civil Procedure section 2034.710, and even if they did, such a motion is required to "be made a sufficient time in advance of the time limit for the completion of discovery," absent exceptional circumstances. (Code Civ. Proc., § 2034.710, subd. (b).) The Court further notes that Defendants again delayed for moving for relief, as it was aware about the ruling in Motion in Limine No. 1 since July 13, 2026. Moving party to give notice.